



State of New Jersey

PHILIP D. MURPHY
Governor

SHEILA Y. OLIVER
Lt. Governor

OFFICE OF THE STATE COMPTROLLER
MEDICAID FRAUD DIVISION
P.O. BOX 025
TRENTON, NJ 08625-0025
(609) 826-4700

KEVIN D. WALSH
Acting State Comptroller

JOSH LICHTBLAU
Director

May 11, 2023

BY ELECTRONIC MAIL

Laura Burgos, Administrator
Trucare Adult Medical Day Care
1111 Paulison Avenue
Clifton, New Jersey 07011

Re: Notice of Overpayment
Case Number: [REDACTED]

Dear Provider:

This letter serves to inform you that the Office of the State Comptroller, Medicaid Fraud Division (MFD) completed a review of Medicaid claims submitted by Trucare Adult Medical Day Care (Trucare), [REDACTED], for the review period of March 18, 2020 through October 31, 2021. From that review, MFD found that Trucare improperly submitted 30 claims for which it received Medicaid overpayments totaling \$1,230.00 that it must repay to the Medicaid program. The 30 claims submitted were for Adult Medical Day Care services billed while recipients were admitted to an inpatient facility, such as a hospital or skilled nursing/long term care center, in violation of N.J.A.C. 10:164-1.5.

Attached is a password-protected spreadsheet of MFD's analysis of all paid claims associated with the review. A secure password will be provided separately by e-mail.

If you believe that MFD did not consider relevant documentation that may affect the number of discrepant claims and the overpayment amount, you may submit the relevant documentation to Investigator [REDACTED] via e-mail at [REDACTED] for review within thirty (30) calendar days of receipt of this letter. Should you submit such a written explanation within this 30-day time period, MFD reserves the right to initiate a more comprehensive investigation, obtain additional records, conduct on-site visits, and perform any additional analysis necessary to conclude this review. Should you fail to respond in writing to

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MFD within this 30-day period, MFD may take further appropriate action, including but not limited to issuing a Notice of Claim, Certificate of Debt, and Notice of Withhold, and/or any other remedy available to MFD by law.

If you agree with the amount of the overpayment, please mail a certified check in the amount noted above made payable to "Treasurer, State of New Jersey" to the address below. Please insert "OSC/[REDACTED]" on the memo line of the check.

Treasurer, State of New Jersey
Division of Revenue
200 Woolverton Street, Building 20
Lockbox 656
Trenton, New Jersey 08646
Attn: Processing Bureau

Please forward a copy of the certified check to my attention at the Office of the State Comptroller, Medicaid Fraud Division, P.O. Box 025, Trenton, New Jersey 08625-0025.

If you have questions regarding this matter, please contact Investigator [REDACTED] via e-mail a [REDACTED]. Please include the case number, "[REDACTED]", in the subject line of any e-mail correspondence.

This Notice of Overpayment documents and seeks a recovery relating to the improper billing of claims by the provider (entity) and its owner(s). Please be advised that this Notice is a public document and, as such, may be placed on the OSC/MFD website. In addition, please be advised that should MFD find deficiencies pertaining to the same or sufficiently similar underlying conduct for a time period after the date of this letter, pursuant to N.J.S.A. 30:4D-7(h), N.J.S.A. 30:4D-17(e), and N.J.S.A. 30:4D-57(d)(2), in addition to seeking to recover the principal owed, MFD may impose civil penalties against the provider (entity) and each owner for such deficiencies.

Sincerely,

KEVIN D. WALSH
ACTING STATE COMPTROLLER

By: [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
Medicaid Fraud Division

Attachment: Trucare Adult Medical Day Care - Claims Spreadsheet (password-protected)

c: [REDACTED], Deputy Director, MFD
[REDACTED], Recovery Supervisor, MFD

MFD Update – July 20, 2023

On July 18, 2023, MFD received a Certified Check, dated June 16, 2023, from Trucare Adult Medical Day Care for the full amount due, \$1,230.00.